

LEARNER WORKBOOK

FULL NAME & SURNAME	
ID NUMBER:	
NAME OF ASSESSOR	
DATE OF ASSESSMENT	
VENUE	

	ACHIEVED	NOT ACHIEVED
KNOWLEDGE		
SKILLS		

Signature of learner

Signature of Assessor

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This material has been compiled based on the **UNIT STANDARD 244182 GIVE EVIDENCE IN COURT.**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by: Training Dynamics Africa

HOW THIS LEARNER WORKBOOK IS COMPILED

This learner workbook has been compiled to guide you towards achieving knowledge, skills and attitudes that would enable them to prepare for, attend and give evidence in a court of law. Learners will be able to understand court structures, functions and procedures and will also be able to describe the functions, roles and responsibilities of court personnel.

1. Prepare to give evidence in court
2. Give evidence in court of law in a given scenario
3. Debrief the organisation on the presentation of evidence in the court of law in a way that will contribute towards future improvement

You have to study the content and guidelines given in your learner reference guide to complete this workbook.

Remember that this completed workbook must be handed in as it will form part of your formative assessment and will play a role in awarding you the required credits that are to be achieved upon completion of this module.

Write neatly and legibly and ensure that you do not simply copy the information contained in the learner reference guide into your workbook. Give your own opinion and ideas where applicable and write the answers in your own words to indicate your level of understanding and learning.

Good luck with the completion of this workbook.

LEARNING UNIT 1

Courts of Law in South Africa

- ♦ Demonstrate awareness of the South African criminal justice system.
- ♦ Explain the roles and functions of the different courts within the South African Criminal Justice System.
- ♦ Explain the roles of all the participants in a court.

Explain the different kind's courts in South Africa. Motivate your answer with a diagram.

[illegible]

[illegible]

Comments in support of decision

LEARNER ACTIVITY 2**Complete the missing words:**

- ♦ An appeal is lodged from (1)_____ and takes place when the court from where the appeal is lodged, has allegedly made an error in its judgment.
- ♦ A (2)_____ also takes place from one court to another, but in the case where there has been an alleged irregularity in the proceedings.
- ♦ A district court has jurisdiction within a (3)_____ district and a (4)_____ within a specific region.
- ♦ All higher courts are presided over by a (5)_____.
- ♦ The constitutional court only handles (6)_____ and has jurisdiction within the whole of South Africa.
- ♦ The supreme court of appeal is only a (7)_____ and never functions as a court of first instance.

- [1] _____
- [2] _____
- [3] _____
- [4] _____
- [5] _____
- [6] _____
- [7] _____

Requirements achieved	YES		NO	
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Comments in support of decision

Explain in detail the role of the following people.

- [illegible]

[illegible]

Requirements achieved	YES	NO
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Demonstrate awareness of the South African criminal justice system.			
2	Explain the roles and functions of the different courts within the South African Criminal Justice System.			
3	Explain the roles of all the participants in a court.			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 2

The Witness

- ♦ Describe the different ways of ensuring the attendance of a witness in court.
- ♦ Use the correct terminology when addressing various role-players in a court.
- ♦ Explain the Officer's duties as a witness prior to commencement of a court case.
- ♦ Present and conduct him in a professional manner in court.
- ♦ Conduct him in accordance with accepted best practice and court protocol in a variety of circumstances.

Explain the various methods that the court can use to ensure that a witness attends a court case.

[illegible]

[illegible]

Requirements achieved	YES	NO
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Comments in support of decision

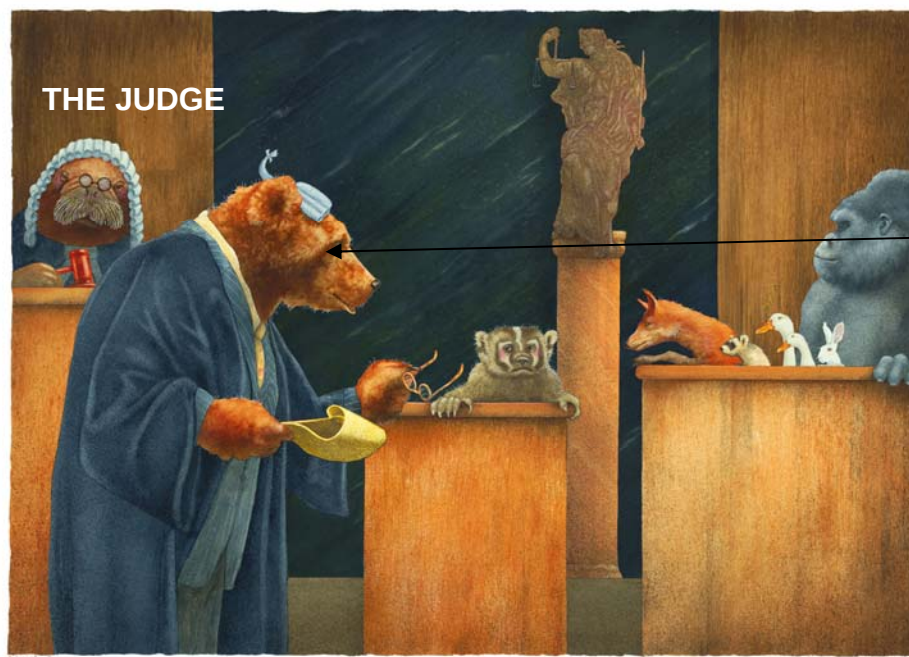
LEARNER ACTIVITY 2

Complete the missing words in the diagram below.

2.1 In a supreme court of appeal.....



2.2 In a



Judge, My Lord or
Your Honor

2.3 In a magistrate court including regional and district courts



Requirements achieved	YES	NO
Comments in support of decision		

LEARNER ACTIVITY 3**Explain at least five the duties of a witness.**

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Describe the different ways of ensuring the attendance of a witness in court			
2	Use the correct terminology when addressing various role-players in a court			
3	Explain the Officer's duties as a witness prior to commencement of a court case			
4	Present and conduct him in a professional manner in court			
5	Conduct him in accordance with accepted best practice and court protocol in a variety of circumstances			

Evidence Collector Signature

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Security Officer Signature

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LEARNING UNIT 3

Process of Giving Evidence

- ♦ Explain and demonstrate knowledge and understanding of the rules of evidence in the event of giving evidence in a court of law.
- ♦ Give verbal evidence in a simulated courtroom situation.
- ♦ Explain the legislative requirements for the presentation of verbal evidence in court, including hearsay evidence.
- ♦ Use techniques that can use when getting intimidated during cross examination.
- ♦ Use tactics that the officer can use when getting intimidated during cross examination.
- ♦ Use notes to provide evidence during a court case.

LEARNER ACTIVITY 1**Explain at least five the duties of a witness.**

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

Compare Column A with the correct Description in Column B. Only one correct description fits the word in Column A (Work through your complete Learner Guide to complete this learner activity.)

	COLUMN A		COLUMN B
1.	Evidence	a.	knowledge that has been observed heard and experienced and which could be of assistance to the crime investigator.
2.	Information	b.	The officer must not introduce himself and commence giving evidence, because it is the duty of the prosecutor to do this.
3.	Proof	c.	refers to the sum total of all the facts presented during evidence.
4.	Giving verbal evidence	d.	valid information which, if admissible in court, strives to prove facts or issues.
5.	Principles of effective testifying	e.	One question after another with little time to answer
6.	Rapid fire questions	f.	He must only speak when questions are asked and an answer must be limited to that implied by the question
7.	Restrictive questions	g.	Cross-examiner stares witness right in the face; shouts "That is so, isn't it, officer?" This is followed up with rapid questions
8.	Suggestive leading questions	h.	"Did you discuss this case with anyone?"
9.	Aggressive approach	i.	"was the murder weapon a knife"
10.	Conflicting answers	j.	Witness answers "the exhibit was seized about meters from the body of the deceased." Cross-examiner says "you say the exhibit was 42 meters from the deceased?"
11.	Reversing	k.	"But Lieutenant Barkley just said" And so on"

	1	2	3	4	5	6	7	8	9	10	11
COLUMN A											
COLUMN B											

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 3

Explain how you will use the investigation notes with specific reference to the requirements that investigation notes needs to meet.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain and demonstrate knowledge and understanding of the rules of evidence in the event of giving evidence in a court of law.			
2	Give verbal evidence in a simulated courtroom situation.			
3	Explain the legislative requirements for the presentation of verbal evidence in court, including hearsay evidence.			
4	Use techniques that can use when getting intimidated during cross examination.			
5	Use tactics that the officer can use when getting intimidated during cross examination.			
6	Use notes to provide evidence during a court case.			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 4

The Court Process

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Show an understanding of the sequence of events during court proceedings
2. Communicate with the state prosecutor to confirm his involvement or role in the judicial process as a witness

LEARNER ACTIVITY 1**Complete the missing words:**

- ♦ In (1)_____ the state prosecutor will read the charge against the accused directly from a (2)_____.
- ♦ In higher courts the (3)_____ will read the charge against the accused from a (4)_____. The accused will then be asked to (5)_____.

[1] _____
[2] _____
[3] _____
[4] _____
[5] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2**Explain the meaning and use of an indictment.**

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

Explain the difference between an indictment and a charge sheet.

Requirements achieved	YES		NO	
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Comments in support of decision

Explain the complete trial procedure with special emphasis on the following:

-
- This image shows a single sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

[illegible]

[illegible]

[illegible]

Requirements achieved	YES	NO
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Comments in support of decision

Discuss the role of the crime investigation officer in the judicial process. Put special emphasis on the communication and importance of the court process:

[illegible]

This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

Requirements achieved	YES	NO
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Comments in support of decision

Explain the method of using the investigation diary and a memorandum to provide feedback to the relevant role players involved:

[illegible]

This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.Comments in support of decision

LEARNER ACTIVITY 7

Indicate whether the following statements are TRUE or FALSE by ticking in the applicable box.

NO	Statements	True	False
1.	An appeal is lodged from one court to another and takes place when the court from where the appeal is lodged, has allegedly made an error in its judgment		
2.	Geographical area and the type of case will not determine the court where a case starts, where an appeal is heard and where a case is reviewed.		
3.	A district court may only try a criminal matter.		
4.	Special lower courts have been instituted to handle specialized matters such as issues involving children, maintenance, speedy and inexpensive litigation in civil cases, traditional customary law and minor criminal cases.		
5.	As a court of first instance, a high court has jurisdiction to try any criminal offence and any civil case if the amount of the claim is more than R100 000 and if the claim is a claim for specific performance without damages in the alternative.		
6.	The supreme court of appeal hears appeals from all the high courts in any sentence and makes any order. It is not the highest appeal court in all matters.		
7.	It is wise, on arrival at court, to report to the JUDGE and advise him of your presence in case either party wishes to discuss any aspects of the case.		
8.	In the South African Criminal Justice System, the burden of proof in criminal cases lies with the DEFENSE COUNCEL.		
9.	The authority to impose punishment lies with the State alone.		

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 8

The learner needs to attend a court case.

Write a report on your experience during the attendance of the court proceedings. The following important criteria needs to reflect in your report.

- ♦ The role of the witness.
- ♦ The role of the prosecutor.
- ♦ The case details. i.e. Case number, date of court case, relevant parties involved.
- ♦ The complete court proceedings.

Attach your report at the back of the learner workbook and mark it clearly assignment : “Learner activity 8 , The court process.”

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Show an understanding of the sequence of events during court proceedings			
2	Communicate with the state prosecutor to confirm his involvement or role in the judicial process as a witness			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 5

Providing feedback

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Use the recording system, which may assist with the notification of the company and clients as to the outcome of the criminal proceedings

Explain the required information which will be necessary to provide detailed feedback.

[illegible]Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Use the recording system, which may assist with the notification of the company and clients as to the outcome of the criminal proceedings			

Evidence Collector Signature

Date

Security Officer Signature

Date